IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-III

Item No.328
CAA-5/ND/2022

IN THE MATTER OF:
Double Century Media FZ LLC AND Times Internet Ltd
.... APPLICANT/PETITIONER

SECTION
U/s 230-232 **Order delivered on 11.09.2023**

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. Abhishek Seth, Advocate
For the RD	: Ms. Shankari Mishra, Ms. Niharika Tanwar, Advocates
For the IT Department	: Mr. Sunil Agarwal Sr. Standing Counsel, Mr. Shivansh B Pandya Jr. Standing Counsel, Mr. Utkarsh Tiwari, Advocate
For the OL	: Ms. Hemlata Rawat Counsel for OL

ORDER

Mr. Abhishek Seth, Ld. Counsel appearing for the Petitioner has stated that in compliance with the order dated 07.08.2023, the RBI has issued a letter dated 28.08.2023 stating therein that as a regulator it will not be ethical for the RBI to vet individual cases as it will prelude it from taking action on contraventions, if any, committed by such companies. A copy of the said report has been placed on record by the Petitioner. Ld. Counsel appearing for the RD has stated that there are certain observations to which clarifications have been given by the Petitioner. With respect to the observations made by the OL, the Petitioner has already given clarifications. Ld. Counsel appearing for the Income Tax Department has stated that there are no objection with respect to the Transferee Company whereas with Respect to the Transfer Company, no report can be filed since it is a foreign based Company.

Arguments concluded. Order **reserved.**

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Mamta
11.09.2023